

HOUSE No. 375

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transparency in credit card fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/12/2026</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/15/2026</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/15/2026</i>

HOUSE No. 375

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 375) of Colleen M. Garry relative to credit card surcharges. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2565 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transparency in credit card fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 28A in Chapter 140D of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out paragraph (2) and inserting in place thereof the
3 following paragraph:-

4 (2) A seller in any sales transaction who imposes a surcharge on a cardholder who elects
5 to use a credit card in lieu of payment by cash, check, or similar means shall inform the
6 purchaser of the surcharge by a sign conspicuously posted on the seller's premises, as well as on
7 every receipt which shall identify the amount of such surcharge and its relationship to the seller's
8 cost of accepting credit cards.